

25STLC00960 25STLC00960

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-08-12

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Case Number: 25STLC00960 Hearing Date: August 12, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Robertson's

Ready Mix, Ltd.'s Motion to Strike Defendant Sahara Construction Co., Inc.'s Answer is denied.

On its own motion, the Court sets

an Order to Show Cause Re: Status of the Legal Representation of Defendant Sahara Construction Co., Inc. for 09/15/2026 at 9:30 am in Department 26 in the Spring Street Courthouse.

Analysis:

Plaintiff Robertson's Ready Mix, Ltd. ("Plaintiff") filed the instant action against Defendant Sahara Construction Co., Inc. ("Defendant SCC") and others on February 6, 2025. Defendant SCC filed its Answer to the Complaint on June 17, 2025. On February 11, 2026, the Court granted the motion of Defendant SCC's counsel to be relieved. (Minute Order, 02/11/26.) Defendant SCC's counsel filed proof of service of the order being relieved on April 30, 2026, making it effective on that date.

On July 2, 2026, Plaintiff filed and served the instant Motion to Strike Answer. No opposition has been filed to date.

Discussion

The Motion to Strike Answer is brought pursuant to Code of Civil Procedure section 436 on the grounds that Defendant SCC, despite being a corporation, is no longer represented by an attorney, making its previously

filed Answer improper. (Motion, p. 2:1-14.)

Motions to strike in the Limited Civil Court may only challenge pleadings on the basis that “the damages or relief sought are not supported by the allegations of the complaint.” (Code of Civ. Proc., § 92, subd. (d).) The instant Motion to Strike does not pertain to whether the damages or relief sought are supported by the allegations, and therefore, cannot be raised in this Court. Furthermore, the Court finds that the Answer itself is not improper as it was filed by an attorney. The Motion provides no authority for a retroactive finding that a pleading is improper after a motion to be relieved as counsel is granted with respect to a corporate defendant. (Motion, p. 4:22-23.)

That said, it is black letter law that a corporation cannot represent itself in court. (Clean Air Transport Systems v. San Mateo County Transit Dist. (1988) 198 Cal.App.3d 576, 578 (citing Merco Constr. Engineers, Inc. v. Municipal Court (1978) 21 Cal.3d 724, 729-730).) This rule applies to all entities regarded as separate from their owners, including partnerships and unincorporated associations. (See Clean Air Transport Systems, supra, 19 Cal.App.3d at 578.) Therefore, the Court finds Defendant SCC cannot appear going forward without an attorney. Lack of counsel is a curable defect. (CLD Constr., Inc. v. City of San Ramon (2004) 120 Cal. App. 4th 1141, 114.) However, if not cured after notice, the corporate entity's pleading may be stricken. (See id. at 1150 (“the court retains authority to dismiss an action if an unrepresented corporation does not obtain counsel within reasonable time.”) The Court sets a show-cause hearing on the date below. If Defendant SCC does not appear through counsel on or before that date, the Court will strike Defendant's Answer.

Conclusion

Plaintiff Robertson's Ready Mix, Ltd.'s Motion to Strike Defendant Sahara Construction Co., Inc.'s Answer is denied.

On its own motion, the Court sets an Order to Show Cause Re: Status of the Legal Representation of Defendant Sahara Construction Co., Inc. for 09/15/2026 at 9:30 am in Department 26 in the Spring Street Courthouse.

Judicial Assistant to give notice.